

THE REPUBLIC OF UGANDA
IN THE HIGH COURT OF UGANDA AT JINJA
(FAMILY DIVISION)
CIVIL SUIT NO.005 OF 2025
(ARISING OUT OF ADMINISTRATION CAUSE NO.26 OF 2023)

ZAABU KWEZI.....PLAINTIFF
VERSES

- 1. SAMUEL MULIMBADEFENDANTS**
- 2. JOHN MUTAMBUZE**

JOINT SCHEDULING MEMORANDUM

PLAINTIFF'S FACTS

The Plaintiffs' claim against the defendants is that the letters of administration granted to Samuel Mulimba /1st defendant in Administration Cause No. 26/2023 be revoked and the name of John Mutambuze be cancelled from the certificate of title of land at Lyamutwe ,Busiro Block 336 Plot 445 . Accountability for the estate of the late Joel Kwezi .

DEFENDANTS FACTS

That 1st obtained letters of Administration legally from the High Court of Uganda in Jinja through Administration cause no. 26 of 2023.

The 2nd defendant purchased land at Lyamutwe ,Busiro Block 336 Plot 445 from the 1st defendant knowing that he was the registered proprietor of the land .

AGREED FACT

That the land at Lyamutwe ,Busiro Block 336 Plot 445 was transferred to the 2nd defendant by the 1st defendant.

The deceased (the late Joel Kwezi)left behind property for the beneficiaries

DISAGREED FACTS

Proposed Issues

- 1. Whether there exists just cause for the revocation of letters of administration of the late Joel Kwezi's estate to the 1st defendant?**
- 2. Whether John Mutambuze is a bonafide purchaser for value without notice?**
- 3. What remedies are available to Zaabu Kwezi?**

PLAINTIFF'S WITNESSES

1. The Plaintiff
2. Other witnesses will be produced with leave of court

PLAINTIFFS LIST OF DOCUMENTS

1. Death certificate
2. A Will
3. Birth certificate
4. LC 1 letter
5. Search report
6. Certificate of titles

DEFENDANTS WITNESSES

1. The 2st Defendant
2. Saidat Mutuuze (LCI Chairperson)
3. Any others with leave of Court

DEFENDANTS LIST OF DOCUMENTS

1. Search report
2. Sales Agreement
3. Letters of administration
4. Certificate of title

LIST OF AUTHORITIES

1. The Constitution of the Republic of Uganda, 1995
2. The Civil Procedure Rules S1 – 71
3. The Civil Procedure Act cap 282
4. The Succession Act Cap 268
5. Other authorities will be adduced with leave of Court

1. ANY OTHER POINTS OF LAW OR MATTERS THAT MAY BE RESOLVED WITHOUT ADDUCING EVIDENCE.

NO

2. ESTIMATED TIME OF TRIAL.

One day for the Plaintiff and one day for the Defendant.

3. WHETHER INTERPRETERS ARE NEEDED FOR WHICH WITNESSES AND IN WHICH LANGUAGE.

No.

4. WHETHER WITNESS STATEMENTS ARE AGREED TO FOR TRIAL.

Yes, all the Parties.

5. WHETHER PARTIES INTEND TO FILE INTERLOCUTORY APPLICATIONS BEFORE TRIAL.

NO

6. WHETHER THERE REMAINS AN OPTION TO BE PURSUED AND THE KIND OF ADR PROCESS PREFERRED.

NO.

DATED at Kampala this..... day of, 2025.

.....
Counsel for The Plaintiff
(M/s Akandondo & Co. Advocates)

.....
Counsel for The Defendant
(M/S J&N Advocates)

LODGED in the Court Registry this.....day of.....2025.

.....
DEPUTY REGISTRAR

Jointly Drawn and Filed By;

M/S Akandondo & Co. Advocates

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&

M/S J&N ADVOCATES

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